

U.P. Krishi Utpadan Mandi (Ikkisawan Sanshodhan) Niyamawali, 2016

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State of Uttar Pradesh - Act

U.P. Krishi Utpadan Mandi (Ikkisawan Sanshodhan) Niyamawali, 2016

UTTAR PRADESH

India

U.P. Krishi Utpadan Mandi (Ikkisawan Sanshodhan) Niyamawali, 2016

Rule U-P-KRISHI-UTPADAN-MANDI-IKKISAWAN-SANSHODHAN-NIYAMAWALI-2016 of 2016

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U.P. Krishi Utpadan Mandi (Ikkisawan Sanshodhan) Niyamawali, 2016

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In exercise of the powers under Section 40 of the Krishi Utpadan Mandi Adhiniyam, 1964 (U.P. Act No. XXV of 1964) read with Section 21 of the Uttar Pradesh General Clauses Act, 1904 (U.P. Act No. 1 of 1904), the Governor is pleased to make the following rules with a view to amending the Uttar Pradesh Krishi Utpadan Mandi Niyamawali, 1965.

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Krishi Utpadan Mandi (Ikkisawan Sanshodhan) Niyamawali, 2016.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Amendment of Rule 2.

- In the Uttar Pradesh Krishi Utpadan Mandi Niyamawali, 1965 hereinafter referred to as the said rules, in Rule 2, in sub-rule (1) after clause (xix) the following clause shall be substituted, namely -

(xix)

"Unified license" means a single license for the whole State. This license may be authorized for trading (sale and purchase) of specified agriculture produce in all market areas to the State. The main Market Committee which is authorised to issue Unified License may suspend or cancel the License with the prior concurrence of the Director, according to the procedure prescribed in these rules.'

3.

Amendment of Rule 67.

- In the said rules for Rule 67 the following rule shall be substituted, namely. -

"67(1) License fee. - The fee for issue and renewal of license for a period of one agricultural year, under the Act shall be as prescribed hereunder:

Provided that the license may be issued and renewal for a period of five years or for the life time of the applicant, on the request of the applicant.

Class of license

Description of license

License fee

1

(1) Wholesale

trader-cum-commission agent, or

(2) Wholesale trader,

or

(3) Commission agent,

or

(4) Mill, or

(5) Factory, or

(6) Cold Storage, or

(7) Broker

250

2

(1) Warehouseman, or

(2) Transport agency

200

3

(1) Atta chakky

(power driven), or

(2) Oil Ghani (power

driven), or

(3) Huller (power

driven), or

(4) Shelter, or

(5) Expeller, or

(6) Ginnery, or

(7) Decorticator

(power driven), or

(8) ?Bel?

centrifugal (power driven), or

(9) Grinder (power

driven), or

(10) Arra machine.

150

4

Retail trader

100

5

(1) Weighman, or

(2) Measurer, or

(3) Palledar

25

6

Unified License for the wholesale commission

agent, Wholesale trader or agent trader-cum- Commission

1,00,000

(4) For functioning as wholesale

trader-cum-commission agent or wholesale trader or commission

agent, each application for the issue of new license or for the

renewal of license shall be accompanied with a deposit of Rs 1000

and in the case of Unified License Rs 1,00,000 as security in the

form of Bank Draft or N.S.C. duly pledged to the Market

Committee.?

4.

Amendment of Rule 70.

- In the said rule for Rule 70 the following rule shall be substituted, namely -

"70. Licensing by the Market Committee. - (1) The Market Committee shall, as soon as may be, after the approval of its bye-laws, by notice to be published through distribution of its copies in Hindi in the Market Area and also by affixation of copies of such notice at prominent places, in the Market Area, and announcement through, loudspeakers or by the beat of drums in the Market Yards call upon all Local Bodies and other persons wishing to set up, establish or continue any place for the sale, purchase, storage, weighment or processing of the specified agricultural produce, in the Market Area, and shall likewise call upon all Traders, Commission Agents Brokers Warehousemen, Weighmen, Measurers, Palledars and other persons handling or dealing in specified agricultural produce, in the Market Yards, to apply for a license under subsection (1) of Section 9 of sub-section (2) of Section 9 or Section 9-A of the Act, as the case may be, in such form as may be specified by the Market Committee in its bye-laws, within a period of fifteen days from the date of publication of the said notice:

Provided that the provisions of this sub-rule shall not apply to a Producer in respect of agricultural produce produced, reared, caught or processed by him and to any person who purchases or stores any agricultural produce for his domestic consumption."

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